

The purpose of this document is informative, to clarify the meaning of the **ESA Protective Markings for Unclassified Information** and its applicability in the frame of the **unclassified tendering process**.

ESA Protective Markings for Unclassified Information				
Protective Marking	Sensitivity	ESA Protection Level	Protective Measures	Applicability in the Unclassified tendering process
ESA UNCLASSIFIED Releasable to the Public	No sensitivity	0	- Protection Level assigned following a risk assessment. - No Protective Measures	Typically for Information released on esa-star News, accessible to guest users without registration and log-in access.
ESA UNCLASSIFIED For ESA Official Use Only	Unauthorised disclosure,integrity shortfall or unavailability are undesirable	1	- Protection Level assigned following a risk assessment. - Need-to-Know principle applies.	Typically for the documents constituting the solicitation package (e.g. ITT cover letter, Special Conditions of Tender, Statement of Work, Draft Contract), accessible by registered users with log-in access on esa-star Publication.
ESA UNCLASSIFIED Limited Distribution	Unauthorised disclosure,integrity shortfall or unavailability could have a negative impact on the interests of ESA and/or one or more of its Member States Or Unauthorised disclosure,integrity shortfall or unavailability could have legal consequences for ESA	2	- Default Protection Level for information at certain stages of the tendering process. - Default Protection Level for information which is subject to export control laws or regulations. In this case the annotation "Contains Export Controlled Information" is added to the Protective Marking. - In other cases, Protection Level assigned following a risk assessment. - Need-to-Know principle applies. - Sender is responsible to point out any distribution limitations and applicable protective measures to addressees (e.g.via Non-Disclosure Agreement/Undertaking)	- Typically for documents that are included in the solicitation packages and distributed in the frame of a tender action upon signature of a Non-Disclosure Agreement/Undertaking and respecting the protective measures foreseen for PL2. - For the documents constituting the solicitation package before its publication.

			• Data at rest is to be encrypted. • Electronic exchange: content is encrypted with an agreed solution.	
ESA UNCLASSIFIED Sensitive Personal Data	Sensitive personal data (as defined in the ESA Personal Data Protection Framework)	2	• Default Protection Level for information which is considered sensitive personal data (as defined in the ESA Personal Data Protection Framework). • Need-to-Know principle applies. • Sender is responsible to point out any distribution limitations and applicable protective measures to addressees. • Data at rest is to be encrypted. • Electronic exchange: content is encrypted with a defined solution.	• Generally not applicable in the frame of the tendering process. It is reported here for completeness of the protective markings.